

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 20, 2012

Due to the holiday season, the Governing Body of the City of Cheyenne instead met in regular session on this date beginning at 12:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne (arriving at 12:45 p.m.), Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Brown, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #20 was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on December 10, 2012. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body present.

Mayor Kaysen opened a public hearing for the purpose of receiving public comment on the proposed trade of real property owned by the City of Cheyenne, being a parcel of land on the west side of Cribbon Avenue near the intersection of Cribbon Avenue and West 28th Street. The proposed parcel to be traded for real property owned by Christensen's Inc., situated along Cribbon Avenue near the intersection of Cribbon Avenue and Talbot Court and Dodge Court. Rick Parish, Director of Parks and Recreation, reviewed the parcels of land involved in the proposed trade, which is adjacent to Pioneer Park baseball facility, and briefly reviewed improvements that are being made to the park area. He explained that during the platting process it was determined that Christensen's Inc. was encroaching on a portion of City-owned property and, pursuant to discussions, it is proposed to trade the City's property (approximately 8,451 sq. ft.) for approximately 52,990 sq. ft. of Christensen's Inc. property (plus monetary cash consideration to make up the valuation difference). He advised property appraisals have been completed on the parcels and noted benefits of the City acquiring the land and developing it as green space for a playground with a picnic shelter. He stated the funding source for the cash consideration would be from money acquired from selling the City's property located near Windmill and Dell Range to Menard's. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning

Districts Established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code, changing the zoning classification from MR-1 Medium Density Residential - Established District to MUB Mixed Use with Business Emphasis District for Lots 30 and 31, Block 1, Eastridge, Cheyenne, Wyoming (located at the northwest corner of the intersection of East Pershing Boulevard and Converse Avenue). Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body present. (#3963)

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the zoning classification from P Public District to CBD Central Business District for Lot 1, Block 1, 2100 Pioneer Subdivision, Cheyenne, Wyoming (located at 2100 Pioneer Avenue). Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. In response to inquiry, Ben Trautwein, Caldwell Banker, explained the purpose of the zone change request is to enhance the ability to sell the property. Motion carried. Voting “yes” -- all members of the governing body present.

ORDINANCE - Amending Section 12.16.020, Planting of certain species of trees and shrubs in public rights-of-way - Limited, of Chapter 12.16, Trees and Shrubs, of Title 12, Streets, Sidewalks and Public Places, of the Cheyenne City Code pertaining to the planting of certain trees within the tree lawn area -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5451)

RESOLUTION - Designating local banks as depositories for municipal funds. Mr. Collins and Mr. Spiker each declared a conflict of interest (board member affiliation with certain financial institutions) and vacated Council Chambers. Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Valdez. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Collins and Mr. Spiker returned to Council Chambers. (#5452)

RESOLUTION - Designating the Sundays during 2013 that annual liquor licensees may extend dispensing room hours of operation for sales until 2:00 a.m. the following day. Bryan Grzegorzczuk, President, Laramie County Liquor Association, reviewed the dates of the four Sundays being requested (Feb. 3, Super Bowl; March 17, St. Patrick’s Day; July 21, first Sunday of Frontier Days, and Nov. 10, Sunday before Veterans Day). He spoke in support of the resolution and provided information on the Association’s safe ride (taxi) for patrons program and the Association’s various fund raisers and charity work benefitting the community. Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to adopt, seconded by Mr. Collins. Comments followed in opposition to the extension of Sunday hours as well as appreciation for the positive programs and projects promoted by the Association. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Ms. Broyles, Mr. Pierson and Mr. Spiker voting “no”. (#5453)

RESOLUTION - To name the parking structure located between Carey and Pioneer Avenues and 16th (i.e. Lincolnway) and 17th Streets in the City of Cheyenne as the “Jack R. Spiker Downtown Parking Structure”. Mr. Spiker declared a conflict of interest and vacated Council Chambers. Ms. Ash reported there was no recommendation on the item from Public Services Committee. Ms. Ash moved to adopt, seconded by Mr. Collins. Comments followed on the lack of standards for naming City parks and structures, the number of years Mr. Spiker has served the community as its Mayor and as a member of City Council, and the numerous projects and improvements Mr. Spiker has been involved in of benefit to the community. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers. Mayor Kaysen advised a date will be scheduled in the future for the dedication of naming the structure. (#5454)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed upon the Laramie County Projects to be submitted to the State Loan and Investment Board for the February 2013 meeting for Countywide Consensus Block Grant Funding in the amount of \$721,407.86. Motion (per Consent Agenda) carried. (#5455)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed upon the Town of Pine Bluffs Projects to be submitted to the State Loan and Investment Board for the February 2013 meeting for Countywide Consensus Block Grant Funding in the amount of \$161,000. Motion (per Consent Agenda) carried. (#5456)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Swan Ranch Rail Park, 6th Filing, a portion of Sections 22, 23 and 27, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (located west of Clear Creek Parkway, south of Overland Trails Business Park Subdivision). Motion (per Consent Agenda) carried. (#5457)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Trinity Estates, a portion of the W½SE¼, Section 1, T.14N., R.67W., 6th P.M., Laramie County, Wyoming (located east of and adjacent to I-25, north of Riding Club Road). Motion (per Consent Agenda) carried. (#5458)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Arp Elementary School, 1st Filing, a replat of Lots 1 and 12, Block 3, Niobrara Energy Park, and a portion of the SW¼ of the NW¼ of Section 9, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located east of and adjacent to Reiner Court, between Hinkley Drive and E. Allison Road). Motion (per Consent Agenda) carried. (#5459)

RESOLUTION - Authorizing the Mayor and City Clerk of the City of Cheyenne to enter into an agreement for the trade of real property owned by the City of Cheyenne to Christensen’s, Inc., a Wyoming corporation, described as a parcel of land generally located west of Cribbon Avenue near the intersection of Cribbon Avenue and West 28th Street, consisting of approximately 8,451 square feet (estimated value of \$30,000.00), and payment of cash consideration in exchange for real property owned by Christensen’s, Inc., consisting of approximately 52,990 square feet (estimated

value of \$188,100.00), generally located west of Cribbon Avenue near the intersections of Cribbon Avenue and Talbot Court and Dodge Court, Cheyenne, Wyoming. Mayor Kaysen advised this item was related to the public hearing held earlier in the meeting. Mr. Brown moved to adopt, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present. (#5460)

[CA] RESOLUTION - Approving Outside User Water/Sewer Services, by User's Agreement, with Swan Ranch Properties, LLC, Lot One, Block 1, Energy Park One, Laramie County, Wyoming -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] RESOLUTION - Directing the City Clerk to schedule a Public Hearing pursuant to Section 5.12.040(2) of the Cheyenne City Code to receive public comment on violations of City ordinances and state laws pertaining to the sale of alcoholic beverages, which violations have occurred at 'Mingles Bar' and to provide a notice of said Public Hearing to Stillwater, Inc., dba 'Mingles Bar' -- referred to Finance Committee (sponsor - Ms. Broyles).

Preliminary Plat for Okie Addition, First Filing, a portion of Section 28, T.14N., R.67W., 6th P.M., Cheyenne, Wyoming (located at the northeast corner of the intersection of E. Pershing Boulevard and Windmill Road). Ms. Ash moved to acknowledge receipt with staff recommendations #1 through 5, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Agreement between the City of Cheyenne and The Lamar Companies, Baton Rouge, Louisiana, for placement of billboard advertising signs. Motion (per Consent Agenda) carried.. (#5939)

[CA] Grant Award Agreement between the City of Cheyenne and the Wyoming Office of Homeland Security for a grant in the amount of \$100,000 for the City of Cheyenne Fire and Rescue Department (Region 7 State Regional Emergency Response Team). Motion (per Consent Agenda) carried. (#5940)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County, Wyoming, for juvenile probation services. Motion (per Consent Agenda) carried. (#5941)

Wellness Services Agreement between the City of Cheyenne and WINhealth Partners for WINhealth Partners Wellness Program services. Mr. Brown moved to approve, seconded by Mr. Valdez. Comments followed on the benefits that have resulted from the program and cost savings that have been realized. Motion carried. Voting "yes" -- all members of the governing body present. (#5942)

[CA] Professional Services Agreement between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization (MPO) and Transit Plus for the 2013 Transit Development Plan for Cheyenne Transit Program (MPO Planning funds) -- referred to Finance Committee.

[CA] Contract Modification No. 3 to Contract No. 5496 between the City of Cheyenne, Engineering Department, and Ayres Associates for additional design services for the East Pershing

Boulevard reconstruction project (Phase IV) (2003-2006, 2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funds) -- referred to Finance Committee.

[CA] Consideration of Bid #R-6-13 for furnishing one new 2012-2013 airless truck mounted paint striping machine for the Traffic Division (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Peterbilt of Cheyenne, WY for a total bid amount, with trade-in, of \$269,573.00).

[CA] Consideration of Bid #R-15-13 for furnishing 120 portable radios, installing one vehicular charger and trading in 120 surplus Motorola portable radios for the City of Cheyenne, Police Department (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (accept bid from Motorola Solutions, Westminster, CO, for a total bid amount, with trade-ins, of \$589,708.00).

[CA] Consideration of Bid #R-9-13 for furnishing one new 2013 rubber tire front end loader and trading in one salvaged 2004 Caterpillar 924G for the City of Cheyenne, Sanitation and Landfill Divisions (Solid Waste Management fund & insurance). Motion (per Consent Agenda) carried (accept bid from Wyoming Machinery, Cheyenne, WY, for a total bid amount, with trade-in, of \$185,723.00).

[CA] Consideration of Bid #R-8-13 for furnishing one new 2012-2013 backhoe loader from Titan Machinery, Cheyenne, WY, for the Concrete Division (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Diagonal Parking Permit application filed with the City Clerk's office by Chaplin Park Development Group, LLC, requesting approval of implementation of diagonal parking spaces along Dey Avenue in association with the renovation of the historic Chaplin School project. Motion (per Consent Agenda) carried.

[CA] Bar and Grill liquor license application for The Suite, LLC d/b/a The Suite, 1901 Central Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Appointments of Victoria J. Fry, Megin Rux and Fred Lacey III to the Cheyenne Historic Preservation Board, and Dr. Brad Kincheloe to the Cheyenne Laramie County Board of Health. Mr. Collins moved to approve, seconded by Mr. Brown. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Re-appointments of Randy Byers, Bob Clary and Michael Peel to the Building Code Board of Appeals; Tony Adams and Ann Redman to the Personnel Commission; Kurt Zunker to the Fire Civil Service Commission; Cindy Pomeroy to the Police Civil Service Commission; Don Threewitt and Kelly Buchhammer to the Cheyenne Historic Preservation Board; Maynard J. Richmeier to the Cheyenne Housing Authority; Ted Gertsch, Leland G. Clabots and Carol Wurdemann to the Housing & Community Development Advisory Council, and Michael O'Donnell to the Board of Adjustment. Mr. Collins moved to approve, seconded by Ms. Broyles. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral

appointments).

Announcement was made of a Public Hearing to be held January 14, 2013, at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the east half of the east half of Section 20, and a portion of the southwest quarter of the southwest quarter of the northwest quarter of Section 21, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located approximately 1500 feet north of the intersection of Converse Avenue and Ogden Road).

Announcement was made that the Sine Die meeting of the Governing Body will be held at 2:30 p.m., and the First Regular Meeting of the Governing Body will be held at 3:00 p.m., on Monday, January 7, 2013 in the Civic Center, 510 W. 20th Street; a reception to follow in the Civic Center Lobby.

Announcement was made that due to the Sine Die meeting of the Governing Body and the First Regular Meeting of the Governing Body on Monday, January 7, 2013, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O'Neil Avenue, Room 122, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, January 8, 2013 at 11:00 a.m. and Public Services Committee will meet Wednesday, January 9, 2013 at Noon.

Announcement was made of a Public Hearing to be held January 14, 2013 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for RMH Franchise Corporation d/b/a Applebee's Neighborhood Grill & Bar, 1401 Dell Range Blvd., Cheyenne, Wyoming (License currently held by Concord Neighborhood Corporation d/b/a Applebee's Neighborhood Grill & Bar, 1401 Dell Range Blvd., Cheyenne, Wyoming).

Under other business:

Mr. Spiker stated that at the Dec. 10th City Council meeting, the motion to approve the ordinance on 2nd reading to grant a franchise to High West Energy, Inc. had failed and, as he had voted on the prevailing side, he moved to reconsider the vote on the ordinance, seconded by Ms. Broyles. Mayor Kaysen clarified the procedure involving a motion to reconsider. Brian Heithoff, General Manager for High West Energy, Inc. (HWE), spoke in favor of the motion to reconsider and noted the following reasons in support of reconsidering the item as well as support for the ordinance: Economic development purposes; growth and services expansion; certainty of service area providing stability; infrastructure investments and ability and commitment to serve new accounts; non-exclusive franchise, and continuance of service to existing accounts and the ability for those customers to retain ownership rights in HWE (City Clerk note: During comments, Dr. Rinne joined the meeting at 12:45 p.m.). During his comments, Mr. Heithoff clarified information he had provided at previous meetings. Comments followed in opposition as well as support for the motion to reconsider. Discussion topics included: "Straddling" City Council membership involving voting actions by current/outgoing members and incoming/newly elected members relative to the timing of action that may be taken on 2nd reading vs. final reading of the ordinance (if the motion to reconsider and subsequent vote on the ordinance is approved); carry-over of other agenda items

between current and incoming Council members; 25 year franchise commitment if the ordinance is approved on final reading, and support for granting HWE the opportunity to provide services within its approved territory. Motion to reconsider carried. Voting "yes" -- Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Pierson, Mr. Spiker and Mr. Valdez. Voting "no" -- Mr. Allen, Mr. Collins, Dr. Rinne and Mayor Kaysen. Upon request by Mayor Kaysen, Carol Intlekofer, City Clerk, read the ordinance entitlement as follows: ORDINANCE - Granting a Franchise by the City of Cheyenne to High West Energy, Inc., its successors and assigns, the right to furnish, sell and distribute electricity to the City and to all persons, businesses, and industry within a portion of the City in High West's Certificated Territory and the right to acquire, construct, install, locate, maintain, operate and extend into, within and through said City all facilities reasonably necessary to furnish, sell and distribute electricity within the City and the right to make reasonable use of all streets and other public places and public easements as herein defined as may be necessary; and fixing the terms and conditions thereof. Mayor Kaysen advised the motion now on the floor was to approve the ordinance on 2nd reading, noting the ordinance version was the one initially submitted for the agenda dated Nov. 21, 2012. Shawn Taylor, Executive Director, Wyoming Rural Electric Association, advised of dual utility franchises that have been approved for other areas in Wyoming and amicable working relationships between the utility companies; discussed rate regulating through the Public Services Commission (PSC) and past state legislative action that provides non-profit cooperatives, such as HWE, the ability to "opt out" of rate regulation through the PSC and to determine its rates through action by the cooperatives' board of directors, and reviewed options available to customers to contest rate changes that may be implemented through a board of directors. Dale Steenbergen, Executive Director, Greater Cheyenne Chamber of Commerce, commented that both companies (i.e. HWE and Cheyenne Light, Fuel and Power Company (CLFP)) are involved in proposed franchise ordinances and have negotiated a proposed agreement as previously requested by the governing body, and spoke in support of keeping fees down and leaving the opportunity open for future review of increases. Mayor Kaysen clarified the current motion on the floor did not include an ordinance version containing a specific time frame for review of the franchise fee for possible incremental increases. Mr. Spiker moved to amend by substitute ordinance dated 12/20/2012, seconded by Mr. Pierson. It was noted that the proposed substitute contains a provision that the franchise fee would be reviewed with the opportunity to increase the fee by one-half of a percent 7 years following approval of the ordinance, and also at two additional 7 year interval periods during the 25 year term of the franchise. Mr. Allen raised a point of order questioning whether the motion to reconsider had been disposed of with Mayor Kaysen clarifying the vote had been taken on the motion and the motion carried by a 6 to 4 affirmative vote. Upon inquiry, City Attorney Dan White reviewed changes contained in the proposed substitute as follows: Editorial error was corrected which removed reference to the inclusion of natural gas services; wording changes in the concluding paragraph relating to the effectiveness of the franchise, which will not occur until the allocation of service territory is approved by the PSC, and language changes to Article 3.1 a. which provides that at the 7, 14 and 21 year time frames during the franchise term there is an option for the City Council to increase the franchise fee by one half percent increments. He explained the option for reviewing and increasing the franchise fee at each seven year interval provides the right, but not the obligation, of City Council to decide whether to increase the fee at that time, and that the significance of the wording is that it reserves the unilateral right by Council to change the fee and would not require the consent of either HWE or CLFP. He noted the proposed wording would pertain to both franchise ordinances which, if approved, would result in both entities being treated equally. Upon inquiry on

wording of the current franchise agreement with CLFP and the ability to re-negotiate the franchise fee during the term of the agreement, Mr. White provided information pursuant to provisions contained in current franchise Ordinance #3146, noting proposed amendments to the franchise ordinance would involve a notification process and that good faith negotiations involving the fee could be conducted but the ordinance does not provide any unilateral clauses giving the City rights to raise the fee. Discussion followed and included the following topics: Concern with lack of flexibility to review the franchise fee at times other than the three 7 year time frame periods outlined in the proposed substitute ordinance; postponing the item to allow for public notification and participation; City Council public meeting schedule if the proposed ordinance was approved on 2nd reading at the current meeting (i.e. 3rd and final reading review at the Jan. 8th Finance Committee meeting and potential action at the Jan. 14th City Council meeting); wording involving future review schedule of the franchise fee as well as ordinance provisions involving potential future amendment(s); cooperative negotiations between the utility companies; involvement by staff and utility company representatives regarding the proposed franchise fee amount and recommended franchise term during drafting of the ordinances for both companies, and rate approval process. During discussion and upon inquiry, Mr. Heithoff confirmed that technically any approval to a change in franchise fee, pursuant to discussions to amend the ordinance, would be through the cooperative's board of directors and not by HWE members. Motion to amend by substitute carried. Voting "yes" -- all members of the governing body with the exception of Dr. Rinne voting "no". Gary Kelley advised he is a customer of both HWE and CLFP and spoke in support of the services provided by each company and approval of dual franchises. He encouraged the governing body to keep expenses down and to provide the public with the opportunity to comment on any fee increases that are "passed through" to customers. Discussion followed on competitive vs. non-competitive services that may result by approving dual franchise agreements; fairness issues; community partnering and contributions provided by CLFP; concern with limiting growth opportunities for CLFP as well as HWE; providing HWE the opportunity to provide electric utility service within the City; concern with difference in rate regulation between the two companies; length of franchise term (i.e. 25 years); other services provided to residents by outside providers, and continuity of the membership of the governing body due to staggered terms and changes in elected officials. Main motion to approve on 2nd reading as amended by substitute ordinance carried. Voting "yes" -- Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Pierson, Mr. Spiker and Mr. Valdez. Voting "no" -- Mr. Allen, Mr. Collins, Dr. Rinne and Mayor Kaysen. Mayor Kaysen advised the ordinance would be reviewed again at the Finance Committee meeting on Jan. 8, 2013 at 11:00 a.m. in Room 122, Municipal Building, and be back before the governing body on 3rd reading at its Jan. 14, 2013 City Council meeting.

Dr. Rinne stated that at the December 10th City Council meeting, the motion to approve the ordinance on 2nd reading to grant a franchise to Cheyenne Light Fuel and Power Company (CLFP) had failed and, as he had voted on the prevailing side, he moved to reconsider the vote on the ordinance, seconded by Mr. Collins. Mayor Kaysen verified the votes taken on the ordinance at the Dec. 10th City Council meeting and confirmed that Dr. Rinne had voted on the prevailing side. Upon request by Mayor Kaysen, Carol Intlekofer, City Clerk, read the ordinance entitlement as follows: ORDINANCE - Granting a Franchise by the City of Cheyenne to Cheyenne Light, Fuel and Power Company, its successors and assigns, the right to furnish, sell and distribute electricity to the City and to all persons, businesses, and industry within a portion of the City in Cheyenne Light, Fuel

and Power Company's Certificated Territory and the right to acquire, construct, install, locate, maintain, operate and extend into, within and through said City all facilities reasonably necessary to furnish, sell and distribute electricity within the City and the right to make reasonable use of all streets and other public places and public easements as herein defined as may be necessary; and fixing the terms and conditions thereof. Mark Stege, Vice President of Operations for CLFP, requested support of the motion to reconsider and spoke in favor of allowing CLFP to continue providing services, noting the company's history of economic development and community partnership efforts. Comments followed and included the following topics: Support of the motion to reconsider and ordinance generally; "straddling" the vote between 2nd and final readings of the ordinance between outgoing and incoming City Council members; current franchise ordinance with CLFP and remaining franchise time frame; fairness issues and treating each utility company the same, and future placement order on the agenda for the ordinances involving HWE and CLFP. Upon inquiry, Ms. Intlekofer and Dan White, City Attorney, advised the governing body has the authority to change the agenda order at its meetings if desired. Motion to reconsider carried. Voting "yes" -- all members of the governing body. Mayor Kaysen advised the motion now on the floor was the main motion to approve the ordinance on 2nd reading as amended at the Dec. 10th meeting. John Sundahl, attorney representing CLFP, urged adoption of a similar amendment (i.e. substitute ordinance) for the CLFP ordinance as the amendment made on the previous agenda item for HWE. Mr. White reviewed changes contained in a proposed substitute ordinance that adds a clause at the end of the ordinance to indicate if the ordinance is approved it would partially repeal the existing franchise ordinance with CLFP (Ordinance #3146) insofar as electric service is concerned but would preserve the existing franchise ordinance with regard to gas services; noted editorial changes were made in the approval clause to clarify the ordinance would not be effective until approved by the governing body, published in accordance with law, and affirmatively approved by the Public Services Commission as to the allocation of service territory, and that the franchise fee section was changed to have the same wording as that approved for HWE relative to the three 7 year franchise fee review time frames with unilateral rights by City Council to increase fees by no more than one-half of one percent during each of the 7 year periods outlined in the substitute ordinance. He stated City Council could unilaterally impose a franchise fee increase and would not need the consent of CLFP, however, the wording does not obligate City Council to increase the fee. Mr. Sundahl noted there was a slight change to Section 18.2 in the proposed ordinance for CLFP, which differs from the substitute approved for HWE, with regard to existing franchise electrical services vs. gas services. Dale Steenbergen, Executive Director, Greater Cheyenne Chamber of Commerce, spoke in favor of the franchise ordinance for CLFP. Mr. Brown moved to amend by substitute ordinance dated 12/20/2012 which contains the changes explained by Mr. White, seconded by Mr. Pierson. Mayor Kaysen clarified the substitute, if approved, gives the governing body unilateral rights to address potential franchise fee increases on a defined incremental basis. Motion carried. Voting "yes" -- all members of the governing body with the exception of Dr. Rinne voting "no". Main motion to approve on 2nd reading as amended by substitute ordinance carried. Voting "yes" -- all members of the governing body.

Appreciation was expressed to Public Works Department and Street and Alley Division employees for snow clearing and removal services after the most recent snow storm. Mayor Kaysen expressed appreciation on behalf of the City and community to outgoing City Council members (Ms. Ash, Mr. Collins, Mr. Pierson and Mr. Spiker) for their years of elected service.

There being no further business to come before the governing body, the meeting was officially adjourned at 2:10 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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